

FOSTER v IRBC 2 PROPERTIES, LLC., et al.

21CV45573

**PLAINTIFF'S 3RD AMENDED MOTION TO COMPEL FURTHER VERIFIED
RESPONSES TO REQUESTS FOR ADMISSION**

Plaintiff Larry Foster brings a "Third Amended Motion to Compel Further Responses to Plaintiffs' September 13, 2024 [Request for Admissions]." The motion is opposed.

On or about September 13, 2024, Plaintiff served Requests for Admission ("RFA") to all named Defendants: IRBC 2 Properties LLC, California TD Specialists, Park Tree Investments, LLC, Real Time Resolutions, Inc., FCI Lender Services, Inc., Connie M. Riggsby, Orlon Financial Group, LLC, and Wilmington Saving Fund Society DBA Christiana Trust as Trustee for 2005 Residential Trust 3-2. Defendants provided an omnibus response on March 3, 2025. (RJN, Ex. 2.) Defendants objected to each RFA on various grounds, including that the RFAs were compound and conjunctive as they were directed to numerous Defendants, without any differentiation between them. (See Code Civ. Proc. §2033.060(f).)

On November 25, 2024, Plaintiff moved to compel further responses to RFAs, Request for Production of Documents, and Interrogatories. The Court denied the ruling on the grounds that the motion did not comply with Local Rule 3.3.7, as well as the fact that the motion improperly sought to compel multiple types of discovery. (While the Court commends plaintiff for properly incorporating the 3.3.7 language, there are still significant shortcomings in his motion as detailed below.)

Defendants' Request for Judicial Notice is GRANTED in its entirety.

I. Legal Standard

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

- 1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.
- 2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

While discovery in civil litigation is broad, it is not limitless and must be relevant, and not unduly burdensome. (*Calcor Space Facility v. Superior Court* (1997) 53 Cal.App.4th 216 223-224.)

II. Analysis

The instant motion fails to comply with California Rule of Court 3.1345 by failing to include a separate statement setting forth the RFA, the response, and the factual and legal reasons why the response is claimed to be inadequate. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778.) The failure to provide a separate statement alone is grounds for the court to deny the motion. (*Ibid.*) Plaintiff did not seek, nor obtain, the Court's approval to ignore this requirement.

In addition, the motion fails to include a declaration of any attempt to meet and confer prior to filing the motion to compel. The declaration that is attached to the motion appears to be a modified version of an earlier declaration, erroneously refers to the motion as one to compel the production of *documents*, and is unsigned and undated, therefore unverified and so inadmissible. Like the motion itself, the declaration is confusing and difficult to follow.

Finally, the Court also has grounds to deny the motion because the Defendants' collective objections were reasonable. Each RFA is directed at multiple Defendants, generally without specifying which Defendant the RFA is directed towards. Additionally, many of the RFAs reference outside documents and matters, making them incomplete and therefore noncompliant with Code of Civil Procedure section 2033.060 (c) and (d). It is unduly burdensome for each Defendant to have to not only refer to outside documents in order to answer the RFAs, but to also ascertain which RFA might be directed to each Defendant. Plaintiff has not provided any response to these valid objections.

III. Conclusion

Plaintiff's motion to compel is **DENIED** on all the foregoing grounds. Plaintiff's motion for sanctions is therefore also **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Counsel for Defendants to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.

TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC

24CF14779

PLAINTIFF'S MOTION FOR LEAVE TO AMEND COMPLAINT

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff.

Now before the Court is Plaintiff's Motion to File Amended Complaint. Plaintiff seeks to substitute named entities for Does 1-3.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.